

TYRE v TYRE

25CV48174

PLAINTIFF'S MOTION FOR PARTITION SALE

This is a dispute seeking partition of personal property ("Mobile Home") brought by Ethan Tyre ("Plaintiff") against Brianna Tyre ("Defendant.") Both parties represent themselves pro se.

Now before the Court is Plaintiff's Motion for Partition Sale. Plaintiff also requests the appointment of a referee to handle the partition and sale of the Mobile Home.

I. Background

Plaintiff filed his Complaint for Partition on July 24, 2025. Defendant denied the allegations in her Answer. The parties have engaged in discovery and have not been able to resolve the matter. (Declaration of Ethan Tyre ("E. Tyre Decl.") A mandatory settlement conference in this case is set for August 24, 2026.

II. Legal Standard and Discussion

A co-owner of real or personal property may bring an action for partition. (Code Civ. Proc. § 872.210.) " 'Partition is a remedy much favored by the law.'" (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493 [citation omitted].) Partition not only allows parties to avoid the inconvenience of sharing joint possession of land, but also avoids " 'unreasonable restraints on the use and enjoyment of property.' [citation]" (*Ibid.*) "A co-owner of property has an absolute right to partition unless barred by a valid waiver." (*LEG Investments*, supra 183 Cal.App.4th at 493, citing Code Civ. Proc. § 872.710(b).)

As a rule, the law generally favors partition in kind since this does not disturb an inheritance or force a person to sell his property. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 597.) However, where – as here – the partition of the property is impracticable, the Court may order partition by sale of the entire property. (*Ibid.*)

Civil Code §872.210 provides, in pertinent part:

If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.

Plaintiff alleges that Plaintiff and Defendant each hold a 50% undivided interest in the Mobile Home, which they inherited upon the death of their mother. (Complaint ¶ 1.) Plaintiff alleges that since March 11, 2024, Defendant has been the sole residence of the Mobile Home and has paid no rent or contributed to the expenses of the Mobile Home. (*Id.* ¶2.) Plaintiff alleges that he solely has paid all costs associated with the Mobile Home including the rent, insurance, utilities and maintenance. (*Id.* ¶ 3.) Defendant has refused to sell or provide financial care of the Mobile Home. (*Id.* ¶ 4.)

While Defendant denied all allegations in her Answer, she has not filed an opposition to the instant motion.

Plaintiff has produced evidence supporting his contention that he and Defendant are the registered Tenants in Common for a mobile property currently located at 14 S. Main Street SP 49, Angels Camp, CA 95222. (Complaint, Ex. 1, copy of title search.) Plaintiff has also provided what appear to be receipts (though mostly illegible) showing that he has paid rent and other costs on the Mobile Home from March 2024 through June 2025 at the least. (*Id.*, copy of receipts.)

Given the Verified Complaint and the attached exhibit showing that the parties are Tenants in Common, either party has an absolute right to partition. There is no argument that either party waived their right to partition, and Defendant has not presented any evidence refuting this. Nor has she filed any opposition to the Plaintiff's motion.

If the court finds that the plaintiff is entitled to partition, it must make an interlocutory judgment that determines the interests in the property and orders partition of the property. (*LEG Investments*, supra 183 Cal. App.4th at 498.) “The court shall order that the property be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment.” (Code Civ. Proc. § 872.810.) In cases of partition by sale, the court “shall order that the property be sold and the proceeds be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment in the following situations: (a) the parties

agree to such relief...[or] (b) the court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property. For the purpose of making the determination, the court may appoint a referee and take into account his report.” (Code Civ. Proc. § 872.820.)

The Court finds that the owners of the Mobile Home are Plaintiff and Defendant, as tenants in common, each with an equal ½ interest. Court finds that Plaintiff is entitled to partition of the Property pursuant to Code of Civil Procedure § 872.720(a).

Plaintiff’s Motion for Partition by Sale is **GRANTED**. The Property shall be partitioned by sale, as partition in kind would be inequitable or impractical.

Michael Wright is appointed referee pursuant to Code Civil Procedure section 873.020, with all powers granted under said statute. (Referee Wright’s contact information can be obtained through the Court Clerk’s Office.

The Settlement Conference on 8/24/2026 is VACATED; a Case Management Conference is scheduled for October 14, 2026, at 1:30 p.m. in Dept. 4 for the Court to be provided an update on the status of the partition sale. (In the event the mobile home as been sold, the proceeds have been distributed, and plaintiff has dismissed this action, the CMC will be vacated.)

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling.

NICHOLAS v LEMP

25CV48280

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION/PLAINTIFF'S MOTION FOR DETERMINATION OF VALIDITY AND ENFORCEABILITY; DEFENDANT'S MOTION FOR ORDER OF DISMISSAL

These matters involve real property disputes between Danny E. Nicholas ("Plaintiff") and Lani Arellanes ("Arellanes") and Cathy Lemp ("Lemp.")

Now before the Court are multiple motions: 1) Plaintiff's motion for summary adjudication; 2) Plaintiff's motion to determine the validity of contract/will; and 3) Lemp's motion for order of dismissal.

I. Background Facts²

In or around October 24, 2021, Plaintiff entered into an agreement with Lani Arellanes (now deceased) which appears to have been memorialized in a handwritten document prepared and signed by Arellanes ("Agreement") (Petition to Void TOD, Ex. 1.) Pursuant to this Agreement, Plaintiff would build a three bedroom home for Arellanes on her property located at 2608 Arrowhead Street ("Arrowhead Property ") with Arellanes providing all materials and tools. In exchange, Arellanes would give Plaintiff a \$53,000 1.1 acre property located at 2044 Yolo Court ("Yolo Property.")

The Agreement also stated:

Should I become disabled or deceased or unable to complete this project to "occupancy" all properties 2044 Yolo Court and 2608 Arrowhead Street will become the property of Danny E. Nicholas to complete his project at Yolo Court. Neither his children nor mine are entitled to either properties.

² The necessary facts to understand the pending motions have to be drawn from both cases which are consolidated.